

PUT ON THE MAT Mamata addressing crowds on Id-ul-Fitr, Mar. 31

TE SURVEY

START AGAIN

- **West Bengal is conducting a fresh survey to identify OBCs, after the Calcutta High Court invalidated the previous classification of 113 communities, predominantly Muslim, as being based on a religious criterion**
- **To be conducted by the Culture Research Institute and the Bureau of Applied Economics and Statistics, the survey will assess a community's backwardness in terms of education, economic conditions and social standing**
- **Some 500,000 individuals have been left uncertain about their access to reservation benefits in schools and jobs**
- **The timing of the survey, shortly before the 2026 polls, has led to charges of political opportunism**

mendations on whether to classify a community as backward.

In this case, the CRI has prepared the questionnaire for the survey, while the BAES has devised the methodology. The survey is designed to assess the backwardness of a community in terms of education, economic condition and social standing. The criteria for determining backwardness align with the Mandal Commission's prescribed 11-point framework. A score below 11 indicates the community is not considered backward; a score between 11.5 and 15 denotes backwardness; and a score above 15.5 classifies the community as more backward. This scoring method has historically informed the categorisation of OBCs into groups A and B, a system the high court has for now overturned.

The commission has received almost 1,000 applications from approximately 118 communities. After due process, it is expected to submit its recommendations to the state by mid-July. Sources within the commission point to the high court's censure of alleged state government interference, emphasising the need for the commission to function independently.

The high court's ruling has already caused significant disruption for thousands of citizens who had previously benefitted from reservation policies. The court's decision effectively nullified OBC certificates issued in West Bengal since 2010, leaving approximately 500,000 individuals uncertain about their access to reservation benefits. While the court clarified that individuals already employed using these certificates would not lose their jobs, those still seeking educational and job opportunities are left in a limbo.

A typical lament came from a resident of Murshidabad, who had recently applied for a government job under the OBC category, "I worked hard for this opportunity, now my application is invalid. What am I supposed to do now?"

The high court's ruling stemmed from procedural concerns such as religion being the criterion for the inclusion of some communities; the West Bengal government, it noted, had in some cases included communities in the OBC list in under 24 hours. The court deemed the classification an "affront to the Muslim community as a whole" and demanded a more objective reassessment. Consequently, it struck down key provisions of the West Bengal Backward Classes (Other than Scheduled Castes and Scheduled Tribes) (Reservation of Vacancies in Services and Posts) Act, 2012.

Faced with mounting pressure, the Mamata Banerjee-led government announced plans to conduct a fresh identification exercise. Senior advocate Kapil Sibal, representing the state, recently informed the Supreme Court that the West Bengal Commission for Backward Classes would lead the fresh survey.

"If the entire exercise is redone, and after that, fresh reservation is provided for, and nobody is aggrieved, then this question will become irrelevant,"